



CHAPTER ccxlv.

An Act to authorise the urban district council of Ebbw Vale to provide additional cemeteries and to make further provision with regard to the supply of electricity and for the improvement health local government and finance of the district and for other purposes. [14th August 1903.] A.D. 1903.

WHEREAS the district of Ebbw Vale in the county of Monmouth is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Ebbw Vale Urban District Council (in this Act called "the Council") :

And whereas it is expedient that the Council should be authorised to take and use lands for the purpose of extending their existing cemetery and of providing an additional cemetery for the district and to make a road for the purpose of providing means of access to such last-mentioned cemetery :

And whereas by the Ebbw Vale Electric Lighting Order 1901 confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1901 the Council were empowered to produce and supply electric energy within the district for public and private purposes and it is expedient to make further provision in regard to the supply of electrical energy by the Council :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains within the district and that the powers of the Council in relation to the health local government and improvement of the district should be enlarged as by this Act provided :

And whereas it is expedient that the Council should be enabled to raise moneys for the purposes of this Act :

A.D. 1903.

And whereas plans and sections showing the lines and levels of the proposed road and the lands to be taken for the purposes of this Act with a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands respectively have been duly deposited with the clerk of the peace for the county of Monmouth which plans sections and book of reference are hereinafter referred to as "the deposited plans sections and book of reference" :

And whereas it is expedient that the other provisions in this Act contained should be sanctioned :

And whereas estimates have been prepared by the Council for the purchase of land for and for the construction and laying out of the cemeteries and for the construction of the road by this Act authorised the sum of eleven thousand pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the second day of December one thousand nine hundred and two after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *South Wales Argus* being a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning that meeting resolved to promote the Bill for this Act :

And whereas such resolution was published twice in the *Ebbw Vale Weekly Argus* being a local paper published and circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-third day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill for this Act in the Offices of the Houses of Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the *Public Health Act 1875* consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1903.

PART I.

PRELIMINARY.

1. This Act may be cited as the Ebbw Vale Improvement Act 1903. Short title.

2. This Act is divided into Parts as follows:—

Act divided into Parts.

- Part I.—Preliminary.
- Part II.—Cemeteries.
- Part III.—Lands.
- Part IV.—Electricity.
- Part V.—Streets buildings and sewers.
- Part VI.—Sky signs and hoardings.
- Part VII.—Sanitary provisions.
- Part VIII.—Infectious disease &c.
- Part IX.—Milk provisions.
- Part X.—Recreation grounds.
- Part XI.—Police and fire brigade.
- Part XII.—Hackney carriages and licences.
- Part XIII.—Financial matters.
- Part XIV.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and not inconsistent with this Act) are incorporated with this Act (namely):—

Incorporation of general enactments.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but these provisions shall apply only to the road by this Act authorised and the works immediately connected therewith.

4. Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings unless there is something in the subject or context repugnant to such construction Provided that in this Act or the

Interpretation.

A.D. 1903. Acts wholly or partially incorporated with this Act for the purposes of this Act—

“The undertakers” and “the company” mean the Council:

In the Railways Clauses Consolidation Act 1845 for the purposes of this Act—

“The railway” means the road or the works immediately connected therewith by this Act authorised;

“The centre of the railway” means with respect to the road the centre of the road:

In this Act unless the subject or the context otherwise requires—

“The district” means the urban district of Ebbw Vale in the county of Monmouth;

“The Council” means the urban district council of the district;

“The clerk” “the surveyor” “the medical officer” and “the inspector of nuisances” respectively mean the clerk the surveyor the medical officer of health and inspector of nuisances appointed by the Council in pursuance of the powers of any public Act and “medical officer” shall include any deputy medical officer of health duly appointed;

“The district fund” and “the general district rate” respectively mean the district fund and the general district rate of the district;

“The Nantyglo Council” means the urban district council of Nantyglo and Blaina in the county of Monmouth;

“Dairy” includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

“Dairyman” includes any cowkeeper purveyor of milk or occupier of a dairy;

“The Public Health Acts” means the Public Health Act 1875 and any Act amending the same;

“Owner” and “street” have the same respective meanings as they have in the Public Health Act 1875;

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support;

The expression "sky sign" shall also include any balloon parachute or other similar device employed wholly or in part for the purpose of an advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

A.D. 1903.

- (1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of an advertisement or announcement ;
 - (2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;
 - (3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and which is or may be placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place ;
- "Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district ;
- "Closet accommodation" means any receptacle for human excreta and the fittings and apparatus connected therewith ;
- "Waste watercloset" means closet accommodation on the water carriage system flushed with slops or water liquids of the household or rain-water ;
- "Daily penalty" means a penalty for every day on which any offence is continued after conviction ;
- "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or of any local authority as defined

A.D. 1903.

by section 34 of the Local Loans Act 1875 but does not include securities of the Council or annuities rentcharges or securities payable to bearer.

PART II.

CEMETERIES.

Enlargement
of existing
cemetery.

5.—(1) The Council may enter upon purchase and take the lands in the district delineated on the deposited plans and thereon described as “Intended Cemetery A” and described in the deposited book of reference under the heading “Lands to be acquired A” and which lands are as follows:—

A piece of land wholly situate in the parish and urban district of Ebbw Vale and county of Monmouth and now forming part of Manmoel Common and containing an area of ten acres or thereabouts bounded on the south-east by the existing cemetery of the Council and on the north-east by the road leading from the goods station at Ebbw Vale along the north-east side of such existing cemetery.

(2) The Council may hold and use the said lands for cemetery purposes as an extension of their existing cemetery and may construct or lay out and maintain a cemetery on the said lands with all necessary or proper buildings trees roads and other works.

New ceme-
tery.

6.—(1) The Council may enter upon purchase and take the lands in the district delineated on the deposited plans and thereon described as “Intended Cemetery B” and described in the deposited book of reference under the heading “Lands to be acquired B” which lands are as follows:—

A piece of land situate in the said parish and urban district of Ebbw Vale and forming part of the fields and enclosures numbered respectively 542 543 544 547 548 and 534 on the $\frac{1}{2500}$ Ordnance map for Monmouthshire sheet XVII. 3 (second edition 1901) and which said piece of land contains together an area of thirteen acres or thereabouts and is bounded on the west by the occupation road numbered 541 on the said Ordnance map on the south by an imaginary line drawn from a point on the said road nine chains or thereabouts from the northern corner of St. Paul’s Churchyard and extending in an easterly direction for a distance of eight chains or thereabouts and on the north by an imaginary line drawn from a point on the said road twenty-three chains or thereabouts from the northern corner of St. Paul’s Churchyard and extending in an easterly direction for a distance of

five chains or thereabouts and on the east by an imaginary line commencing at the termination of the imaginary line first above described and extending in a northerly direction for a distance of seventeen chains or thereabouts and terminating at the termination of the imaginary line lastly described. A.D. 1903.

(2) The Council may hold and use the said lands for cemetery purposes and may construct or lay out and maintain a cemetery on the said lands with all necessary or proper buildings trees roads and other works.

7. For the protection of the trustees of the will of the late Crawshay Bailey and their sequels in estate or other the owner or owners for the time being of the Crawshay Bailey estate (in this section referred to as and included in the expression "the owners") the following provisions shall unless otherwise agreed between the Council and the owners have effect (that is to say) :— For protection of owners of Crawshay Bailey estate.

(1) The Council shall before using for cemetery purposes the piece of land which by the section of this Act the marginal note whereof is "New cemetery" they are authorised to enter upon purchase and take or any part of such land properly and effectually drain the same so that if possible the water supply now given by the owners to their tenants in the neighbourhood of such land shall not be fouled injured or interfered with :

(2) If the said water supply is in any way fouled injured or interfered with the Council shall at their own expense take all necessary steps to afford and shall afford free of charge a supply of pure water to the tenants of the owners adequate to the needs of the premises respectively occupied by them having regard to the purposes for which such premises are for the time being used and equal in all respects to the supply afforded by the Council to other premises of a similar description :

(3) In constructing the road which the Council are by the section of this Act of which the marginal note is "Power to make road to cemetery" authorised to construct the Council shall make and shall thereafter maintain sufficient retaining walls on the north side thereof so as to effectually prevent landslips or débris or soil being washed or falling into the road Such road shall be constructed of a width of not less than thirty-six feet and the owners and their tenants shall be entitled to the free and uninterrupted use

A.D. 1903.

thereof and no part of the said road shall be deemed to be a street within the meaning of section 150 of the Public Health Act 1875 and of the Private Street Works Act 1892 or of any Act amending the same until buildings have been erected fronting or abutting on such part of the said road :

(4) The Council shall not purchase or acquire any greater quantity of land of the owners shown on the deposited plans of such road than shall be required for the construction of the road of a width of thirty-six feet and shall properly fence the same and provide and maintain gates at such points as the owners may prescribe so as to allow of free access to the road from the lands fronting or abutting thereon and shall where necessary provide side approaches to such gates Provided that the Council shall remove such fencing if at any time or times required by the owners so to do for the whole or any part or parts of the length of such road :

(5) It shall not be lawful for the Council in constructing the said road to deviate from the line or levels thereof as respectively shown on the deposited plans and sections without the consent in writing of the owners :

(6) Any difference which may arise under this section between the owners and the Council shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protec-
tion of Ebbw
Vale Steel
Iron and
Coal Com-
pany Limited
under this
Part of Act.

8.—(1) Subsection (3) from and including the words “such road” and subsections (4) and (6) of the section of this Act the marginal note whereof is “For protection of owners of Crawshay Bailey estate” shall enure to the benefit of the Ebbw Vale Steel Iron and Coal Company Limited and the expression “the owners” in those subsections shall include that company.

(2) The mines and minerals under the lands authorised by this Act to be entered upon and taken for cemetery purposes and lying at a depth of one hundred feet or more below the surface shall not be purchased or taken except with the consent of the said company and that company their lessees or occupiers shall be at liberty to work such mines and minerals by means of underground workings only in the usual and customary manner.

Power to
make road to
cemetery.

9. Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown upon the deposited plans and sections as a means of access to the cemetery authorised by the section of this Act of which the marginal note

[3 EDW. 7.] *Ebbw Vale Improvement Act, 1903.* [Ch. ccxlv.]

is "New cemetery" and for the purposes of the two last preceding sections of this Act the work following (that is to say) :— A.D. 1903.

An occupation road thirty-six feet wide wholly situate in the district commencing by a junction with the main road leading from Victoria Station to Cwm Station at a point fifteen chains or thereabouts measured in a north-westerly direction from the north-west corner of St. Paul's Churchyard and terminating at the southern boundary of the said piece of land numbered 544 on the said Ordnance map and proposed to be taken under the last preceding section of this Act at a point five and a half chains or thereabouts east of the road forming the western boundary of the said piece of land :

Together with footways carriageways fences gates and all necessary works.

10. In constructing the said road by this Act authorised the Council may deviate from the lines thereof to any extent not exceeding the limits of deviation shown on the deposited plan and may also deviate from the levels shown on the deposited section to any extent not exceeding five feet either upwards or downwards. Power to deviate in construction of road.

11. The cemeteries provided by the Council under this Act shall for the purpose of construing the Burial Act 1900 be deemed to be cemeteries provided under the Public Health (Interments) Act 1879 and the Council shall in relation to the cemeteries provided under this Act have all the powers of the said Acts of 1879 and 1900 and of the Cemeteries Clauses Act as incorporated with the said Act of 1879 and amended by the said Act of 1900 subject to the like liabilities and restrictions as if the cemeteries provided by the Council under this Act had been provided under the Public Health (Interments) Act 1879 Provided nevertheless that section 10 of the Cemeteries Clauses Act 1847 shall not apply to the cemeteries provided under this Act but the Council shall not construct any cemetery within one hundred yards of any dwelling-house except with the consent of the owner lessee and occupier thereof in writing. Application of Public Health (Interments) Act 1879 and other Acts.

PART III.

LANDS.

12. Subject to the provisions of this Act the Council may for the purposes of the cemeteries authorised by Part II. of this Act enter on take and use all or any of the lands in the parish and urban district of Ebbw Vale delineated on the deposited plan and described in the deposited book of reference. Power to acquire lands.

A.D. 1903.

Correction of errors &c. in deposited plan and book of reference.

13. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Monmouth for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the clerk to the Council and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

14. The powers of the Council for the compulsory purchase of lands or easements under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Limiting quantity of commonable land to be taken.

15. The quantity of land which may be taken by the Council from Manmoel Common in the parish of Ebbw Vale for the purpose of enlarging the existing cemetery shall not exceed ten acres.

Persons under disability may grant easements &c.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Additional lands by agreement.

17. The Council may (in addition to any lands they are authorised to acquire and hold by compulsion or agreement under the powers of this Act) acquire any lands necessary for all or any of the purposes of this Act by agreement either in fee simple by purchase or by way of exchange or by way of lease for a term of not less than five hundred years not exceeding in the whole twenty-five acres Provided that the Council shall not create or permit a nuisance on any such lands.

18. The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Council may give or take any money for equality of exchange. A.D. 1903.
Considera-
tion for such
acquisition.

19. The Council shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction
on taking
houses of
labouring
class.

If the Council acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section—

The expression "house" means any house or part of a house occupied as a separate dwelling ; and

The expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

20. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to re-
tain sell &c.
lands.

A.D. 1903.

Application
of moneys
from sale &c.
of land.

21. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council. Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

PART IV.

ELECTRICITY.

Power to
supply elec-
tric fittings.

22.—(1) The Council may provide sell let for hire and fix set up alter repair and remove but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any expenses incurred by the Council in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the Council under this section shall be applied in manner provided by section 7 of the Schedule to the Electric Lighting (Clauses) Act 1899.

Altering
date for fill-
ing up an-
nual accounts
for electric
lighting.

23. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the

thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

A.D. 1903.

24. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges Provided that the Council shall make the same allowance to all consumers under similar circumstances.

Discount on electric lighting and power accounts.

25. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises.

Council may refuse to supply electrical energy in certain cases.

26. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Council such minimum annual sum as will give to the Council a reasonable return on the capital expenditure and other standing charges incurred by the Council to meet the possible maximum demand of such person In case the Council and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

As to supply of electricity where consumer has separate supply.

PART V.

STREETS BUILDINGS AND SEWERS.

27. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force or any byelaw thereunder.

As to plans deposited with Council.

A.D. 1903.

Approval of
plan to be
void after
certain
intervals.

28. The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced and substantially proceeded with within the following periods (that is to say) :—

As to plans or sections approved after the passing of this Act within two years from the date of such approval ;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite.

The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

No buildings
allowed until
street formed
&c.

29. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Council may
define future
line of exist-
ing streets.

30.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain No new building erection excavation or obstruction (being of a permanent

character) shall be made nearer to the centre of the street or road than such line. A.D. 1903.

(2) The Council may and if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road and the same when purchased shall vest in the Council and shall form part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

31. When the plans of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto The Council shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section. Power to vary position or direction of new streets.

32. The Council may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending. Council may declare where streets begin or end

33. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street. Continuation of existing street to be deemed new street.

34.—(1) Every person desirous of forming a communication for horses or vehicles across any kerbed footpath so as to afford Crossings for horses or vehicles over footways.

A.D. 1903. access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Council and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise.

(2) If any person drives or permits or causes to be driven any horse or vehicle across any footway unless and until such a communication as aforesaid has been so made or on or along any part of any such footway other than the part over which such communication has been made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to such footway.

Deposit of building materials or excavations not to be placed without consent.

35. It shall not be lawful for any person without the consent of the Council in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Council and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

Materials in streets.

36. The Council may remove appropriate use and dispose of any old materials existing in any street at the time of the execution by the Council of any works in such street unless the owners of buildings and lands in such street within forty-eight hours after notice so to do served on them by the surveyor remove such materials or their respective proportions thereof and the Council may if they think fit allow such sum as they may fix to be the reasonable value thereof to such owners for any materials which have been re-used or removed by the Council.

37. If the footway of any street belonging to or under the management of the Council be injured by or in consequence of any excavations or other works on lands adjoining thereto the Council may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Council by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

A.D. 1903.
Recovery of
damages
caused to
footways by
excavations.

38. No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance. Provided that the approval of the Council shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property. In determining the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre or the front of the building up to the top of the parapet or to the eaves of the roof as the case may be. In case of a gable facing the street the measurement shall be to a point half way between the level of the eaves and the ridge. In case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves :

Height of
buildings.

Provided that where any new building shall front to two or more streets the height of such new building shall be determined according to the width of the widest of such streets.

39. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street.

Projections
over streets.

40. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building

What to be
deemed new
buildings.

A.D. 1903.

byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ; and

The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a " new building."

As to temporary and movable buildings.

41.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within six weeks after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Council or before the expiration of six weeks without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not

exceeding forty shillings and to a daily penalty of the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion. A.D. 1903.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district in respect to new buildings and any tent not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion ; and

(C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light.

42. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such structure. Power to sell materials of temporary buildings.

43. Where under the provisions of the Public Health Acts or this Act the Council have power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively and the Council may if such separate sewers have been provided from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street As to separate sewers.

A.D. 1903. provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

Council may
require en-
larged sewer.

44. If in any street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

For prevent-
ing soil and
sand from
being washed
into streets.

45. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable :

Provided that this section shall not apply to any lands of an agricultural character.

Trees or
shrubs over-
hanging
streets and
footpaths.

46. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring

him to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage. A.D. 1903.

47. If any land adjoining any street be allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Council owing to the absence or inadequate repair of such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the clerk of the Council to the owner or occupier of the same or without any notice if the Council are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Council may cause the same to be fenced or may cause the fences to be repaired in such manner as they shall think fit and the expenses thereby incurred shall be recoverable from such owner or occupier summarily or as a debt in any court of competent jurisdiction. Fencing
lands adjoining
streets.

48. With respect to the repairing or enclosing of dangerous places the following provisions shall have effect (namely) :— Dangerous
places to be
repaired or
enclosed.

(1) If any building wall steps structure or other thing or any well excavation reservoir pond stream dam or bank on any land or place is in the opinion of the Council for want of sufficient repair protection or enclosure dangerous to the passengers along any street or footpath the Council may order the owner within the period specified in such order to repair remove protect or enclose the same so as to prevent any danger therefrom :

(2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Council may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily.

49. The provisions of sections 96 97 and 98 of the Public Health (London) Act 1891 shall extend and apply to all underground rooms which were not let or occupied separately as dwelling-houses before the passing of this Act within the district and for the purpose of such application the Council shall be deemed to be the sanitary authority referred to in those sections. As to under-
ground
rooms.

A.D. 1903.

As to urgent repairs to private streets.

50. In case where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Council may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Council may if they think fit execute such repairs and the expenses thereof shall be recoverable summarily by the Council from the owners in default in proportion to frontage:

Provided that no railway company shall be deemed to be an owner for the purposes of this section in respect of any land of such company upon which any street shall wholly or partially front or abut and which shall at the time when such notice is given be used by such company solely as a part of their line of railway or siding station or works and shall have no direct communication with such street.

Exemption for railway property.

51. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway.

PART VI.

SKY SIGNS AND HOARDINGS

Regulations as to sky signs.

52.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed:

Provided that in any of the following cases a licence of the Council under this section shall become void (namely):—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor:
- (ii) If any change be made in the sky sign or any part thereof
- (iii) If any sky sign or any part thereof fall either through accident decay or any other cause:

(iv) If any addition or alteration be made to or in the house building or structure over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof: A.D. 1903.

(v) If the house building or structure over on or to which the sky sign is placed or attached becomes unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to the recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

53.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

Provision as to hoardings and other structures used for advertising purposes.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any hoarding or similar structure to a greater height than twelve feet above the level of such street in or abutting on or adjoining any street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Council may determine.

(3) The owner or other person using any such hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be

A.D. 1903. — liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the clerk or surveyor.

Restriction
on adver-
tising
vehicles.

54. It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit. Any person aggrieved under this or the preceding section by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he give twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit.

PART VII.

SANITARY PROVISIONS

Power to
require
waterclosets
for new
buildings.

55.—(1) The Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available require that such new building shall be provided with proper and sufficient waterclosets and waste water-closets or with one or more of either class of closet according as circumstances may require.

(2) The Council may on the erection of any new building when a sewer and water supply sufficient for a watercloset or waste watercloset are not reasonably available require one or more proper and sufficient earth-closets and ashpits to be provided at or in connection with such building.

(3) Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Conversion
of existing
accommo-
dation into
watercloset.

56.—(1) When a sewer and water supply sufficient for the purpose are reasonably available the Council may require any existing closet accommodation (other than a watercloset or waste watercloset) provided at or in connection with any building to be altered so as to be converted into a watercloset or waste water-closet which shall comply with the byelaws for the time being in

force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connection with such building. A.D. 1903.

(2) If the owner of any such building fail in any respect to comply with a notice from the Council under this section the Council may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Council in so doing :

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer to be insufficient for the necessities of the inhabitants of the building or to be in such a state as to create a nuisance or to be injurious to health then the Council shall bear and pay such sum towards the expenses incurred by them (not being less than one half thereof) as they may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owner.

(3) The Council may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this section in any case in which they may not be required to bear any part of such expense.

(4) The notice under this section shall state the effect of the provisions of this section.

57.—(1) Where any person deems himself aggrieved by any requirements of the Council under either of the two last preceding sections or disputes the reasonableness of the expenses charged to him by the Council under such sections such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

As to appeal under two last preceding sections.

Provided nevertheless that the right of appeal subsequent to the service of a demand of a payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2) Pending the decision of the court upon such appeal the Council shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

A.D. 1903.

Provision for
filling up
cesspools &c.

58. If it shall appear to the Council by the report of the medical officer surveyor or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any such house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Council may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be filled up or removed and any drain communicating therewith to be effectually disconnected destroyed or taken away or to cause such cesspool receptacle ashpit or well to be so altered as to remove any such objection as aforesaid.

Where it appears that any such cesspool receptacle ashpit or well is used in common by the occupiers of two or more houses or parts of houses the notice for filling up or removal of any such cesspool receptacle ashpit or well may be served on any one or more of the owners or occupiers of such houses and it shall not be necessary to serve such notice on all of such owners or occupiers.

If default is made in complying with the requisitions of a notice under this section the Council may themselves carry out the requisition and may recover the expenses incurred by them in so doing from the owners or occupiers in default in a summary manner as a civil debt or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts.

Inspection of
drains &c.

59.—(1) On complaint made on oath by the surveyor the medical officer or the inspector of nuisances that he or they have reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to the surveyor medical officer or inspector of nuisances to jointly or severally inspect and test any drain closet or cesspool or any water supply sink trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for the purpose of ascertaining the course of any such work the surveyor medical officer or inspector of nuisances at reasonable times in the day-time after not less than twenty-four hours' notice in writing has been given to the occupier of the premises to which such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises may enter and cause

the ground to be opened wherever the surveyor medical officer or inspector of nuisances thinks fit doing as little damage as may be. A.D. 1903.

(2) If any person obstruct or attempt to obstruct or incite any person to obstruct the surveyor medical officer or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection to be properly made in accordance with the Acts and byelaws in force within the district and in proper order and condition the Council shall cause the same to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Council and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection not to have been properly made as aforesaid or to be in bad order and condition and to require cleansing alteration or amendment or to be filled up the Council shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to place the work in proper order and condition.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council if they think fit in lieu of proceeding for a penalty may enter upon the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

(6) For the purposes of this section the word "drain" includes any sewer which is not vested in the Council.

60. If after the passing of this Act a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds : Improper construction or repair of watercloset or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him

AD. 1903. to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

As to reconstruction of drains.

61. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws relating to the drainage of new buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

Wilful damage to drains.

62. If any person cause any drain watercloset waste water-closet earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds :

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Council may order houses &c. to be drained by a combined operation.

63. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Council shall determine and if executed by the Council may be recovered by the Council from such owners or occupiers in a summary manner before a court of summary jurisdiction :

Provided that the Council shall not without the consent of the owner exercise the powers conferred by this section in respect

of any house plans for the drainage of which shall have been previously approved by the Council. A.D. 1903.

64. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer. Council may require old drains to be laid open for examination by surveyor before communicating with sewers.

65. The powers of the Council under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at large and to provide and maintain in proper and convenient situations lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Council may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and any such lavatories for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper. Public conveniences and lavatories.

66. Where any inn public-house beer-house eating-house or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto the Council may by notice in writing require the owner of such inn public-house beer-house eating-house or other place of public entertainment to provide and maintain on the premises a reasonably sufficient urinal or urinals Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings. Urinals to be attached to refreshment rooms.

67. If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Council be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove such urinal or convenience Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Council may require removal or alteration of urinals.

A.D. 1903.

Charge for emptying ashpits of trade refuse.

68. If any trade refuse or any building materials or other materials or rubbish of a like description be deposited on any ashpit or ash-tub the Council may make a reasonable charge for the removal of the said refuse materials or rubbish which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily.

Houses without proper supply of water.

69. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy such dwelling-house or who shall allow such dwelling-house to be occupied shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Improper cisterns.

70. Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health shall be deemed a nuisance within the meaning of the Public Health Act 1875.

Prohibition of blowing or inflating carcasses.

71. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the district and any person offending against this enactment or exposing or depositing for sale within the district a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Public drinking fountains.

72. The Council may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such public places as the Council may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as hereinbefore mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings which penalty may be recovered by the Council.

Penalty on occupiers refusing execution of Act.

73. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Act or under any byelaw made under the powers of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of

seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1903.

If the occupier of any premises when requested by or on behalf of the Council to state the name of the owner of the premises occupied by him shall refuse or wilfully omit to disclose or wilfully misstate the same he shall (unless he shall show a cause to the satisfaction of the court for his refusal) be liable to a penalty not exceeding two pounds.

PART VIII.

INFECTIOUS DISEASE &c.

74. The Council may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Council. Byelaws for regulating hospitals.

75. It shall not be lawful for any owner or driver of a public vehicle used for the carrying of passengers at separate fares knowingly to convey or for any other person knowingly to place in any such public vehicle a person suffering from any infectious disease or for a person suffering from any such disease to enter any such vehicle and every person offending against this enactment shall for every such offence be liable to a fine not exceeding forty shillings. Prohibiting conveyance of infected persons in public vehicle.

76. If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connection with such disinfection Driver &c. of infected person to give notice.

A.D. 1903. It shall be the duty of the Council when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Infected person not to carry on business.

77. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread such infectious disease within the district and if he does so he shall be liable to a penalty not exceeding forty shillings.

Penalty on guardian permitting infected child to attend school.

78. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from a medical practitioner or the medical officer a certificate (for which if application is made to him the medical officer shall make no charge) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Principals of schools to furnish lists of scholars.

79. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school (or if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith send notice thereof to the medical officer and shall furnish to the Council at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

Power to medical officer to examine school children.

80. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar. A.D. 1903.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

81. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things. Disinfection
of clothes.

82.—(1) Where on the certificate of the medical officer it appears to the Council that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may if they think fit cause any such articles in any such house or part thereof to be cleansed or purified or they may destroy the same. Filthy and
dangerous
articles to be
purified.

(2) If any owner suffer any unnecessary damage the Council shall compensate him for the same and the Council shall also reasonably compensate the owner for any articles destroyed.

83. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the Persons en-
gaged in
washing or
mangling
clothes to
furnish lists
of owners of
clothes in
certain cases.

A.D. 1903. — past six weeks and such person shall furnish such list accordingly and the Council shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Protection
against in-
fection of
books in pub-
lic libraries.

84. No person shall return to any public library or circulating library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Dairymen to
notify infec-
tious disease
among their
servants.

85. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the Council or the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Medical
officer may
require dairy-
men to fur-
nish list of
sources of
their supply
of milk.

86. If the medical officer shall have reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to which he has within such six weeks supplied milk within the district and the Council shall pay for such last-mentioned list the sum of sixpence and at the rate of sixpence for every twenty-five words contained therein. Every person failing to comply with any request of the medical officer under this section shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Compensa-
tion to dairy-
men.

87. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons

residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and such compensation may be paid out of the district fund or general district rate. A.D. 1903.

88. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage. Compensation to persons ceasing employment.

89. The Council may provide or contract with any person or persons to provide nurses for attendance upon persons suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse provided by them. Council may provide nurses.

90. Any person being a manufacturer or vendor of or merchant or dealer in ice creams or any similar commodity who within the district— For regulating manufacture and sale of ice creams &c.

(A) Causes or permits ice creams or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give immediate notice thereof to the medical officer for the district ;

shall be liable for every such offence on summary conviction to a penalty not exceeding five pounds.

91. The Council shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix. Notice of provisions of Part VIII. of Act.

PART IX.

MILK PROVISIONS.

92. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds. Penalty for selling milk of diseased cows.

A.D. 1903.

Penalty on
failing to
isolate
diseased
cows.

93. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to
notify cases
of tuber-
culosis.

94. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to
take samples
of milk.

95.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to
inspect cows
and to take
samples of
milk.

96.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them

within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council. A.D. 1903.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(d) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(e) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(f) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(g) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(h) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

97. The dairyman may appeal against an order of the Council under this Part of this Act or the refusal of the Council to Appeal.

A.D. 1903. withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The Court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

Compensation.

98. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of Part IX. of Act.

99. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into

operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix. A.D. 1903.
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100. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise. Procedure.

101.—(1) All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow. Expenses and execution of this Part of Act.

(2) This Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

PART X.

RECREATION GROUNDS.

102. The Council may in any recreation ground erect maintain furnish and equip and may remove refreshment assembly and reading rooms museums pavilions baths and conservatories and may alter temporary or permanent buildings and conveniences which may be required or convenient for the purposes of such recreation ground and the public resorting thereto and may charge for admission to any of such rooms buildings or conveniences or in respect of the use thereof or of any part or parts thereof respectively. Provided that the Council shall not charge for admission to any reading room or museum on more than twelve days in any one year nor on more than four consecutive days on any one occasion. Council may erect buildings &c.

103. The Council may place or authorise any person or persons to place seats shelters or chairs in any street recreation ground or other public place for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto. Chairs and seats for public use.

A.D. 1903.

Power to
Council to
let refresh-
ment rooms
&c.

104.—(1) The Council may let any refreshment rooms or other buildings in any recreation grounds with their appurtenances belonging to them or under their control to such person for such term not exceeding three years at any one time at such rent payable at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Council may think fit.

(2) The Council may also let any such pavilion or other building for the purposes of meetings or entertainments and may make such charge and impose such conditions as they may think fit.

Bands of
music.

105. The Council may pay or contribute towards the payment of a band of music to perform in any park or pleasure or recreation ground or building for the time being belonging to or held by the Council or elsewhere in the district as they may direct and the Council may enclose a small area within which such band shall play and make byelaws for regulating the time and place for the playing of the band the payments to be made for admission within such building or enclosure and for securing good and orderly conduct during the playing of the band. Provided that the payments or contributions of the Council for or towards such band shall be paid out of the district fund and general district rate and shall not in any one year exceed an amount which would be produced by a rate of one halfpenny in the pound on the assessable value of the district to the general district rate.

Pleasure
grounds to
be deemed
streets.

106. The public parks gardens and pleasure grounds within the district shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences :—

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle overdriven which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot :

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or dis- A.D. 1903.
charges any missile or makes any bonfire :

Every person who throws or lays any dirt litter ashes or night
soil or any carrion fish offal or rubbish on any street.

107.—(1) The Council may permit the use of or set apart any part or parts of the recreation grounds for cricket football lawn tennis and other games and sports for gymnastics for the drill of any military or police force for concerts and other amusements and for any purposes tending to promote the health amusement instruction and enjoyment of the inhabitants of the district and the public. Setting apart and closing of recreation grounds for games.

(2) The Council may also during times of frost for the purpose of protecting ice for skating on all or any part of any lake or piece of water in any park or recreation ground enclose such parts of such parks and places as may be necessary to effect such purpose and charge for admission to any part so enclosed Provided that the portion of any such lake or piece of water which shall be enclosed and for admission to which a charge shall be made shall not exceed one half of the whole area of such lake or piece of water.

108. The Council may provide apparatus for games and recreation for the use of the public frequenting any public parks gardens and recreation grounds within the district and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Council may make regulations with respect to the use and the payment for the use of such apparatus. Power to provide apparatus for games.

109. The Council may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to appoint officers.

110. The moneys (if any) received from the admission of any persons to any reading room assembly room pavilion or building in any recreation ground belonging to the Council or under their control and management or from the letting of any refreshment rooms or other buildings or from the letting of chairs or any apparatus for playing at games shall after providing for the maintenance of such recreation grounds be carried to the district fund. Application of moneys received for admission to public recreation grounds.

A.D. 1903.

PART XI.

POLICE AND FIRE BRIGADE.

As to unfenced ground.

111. Any unfenced ground adjoining or abutting upon any street or highway shall for the purposes of the Vagrancy Acts be deemed to be a public place.

Power to police constable &c. to enter and break open premises in case of fire.

112. Any police constable acting under the orders of his superior officer and any member of the fire brigade of the Council being on duty and any officer of the Council may enter and if necessary break into any building in the district being or reasonably supposed to be on fire or any building or land adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

Captain of fire brigade or other officer to have control of operations.

113.—(1) The captain or superintendent of the fire brigade of the Council or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the district shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fire whether by the Council or any other fire brigade including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed.

(2) The officer in charge of the police at any fire within the district shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds.

PART XII.

HACKNEY CARRIAGES AND LICENCES.

Powers of inspector of hackney carriages.

114. Any person appointed by the Council in writing may examine all public vehicles plying for hire within the district and shall see that the laws and byelaws relating to such public vehicles are duly observed. If any proprietor driver conductor or other

person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

A.D. 1903.

115. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Council with respect to public vehicles shall be as fully applicable in all respects to public vehicles within the district conveying passengers to or from any railway station within the district as if such railway station were a public stand for public vehicles and also to such carriages and the drivers thereof within a distance of five miles from the district if the hiring takes place within the district. Provided that it shall not be obligatory on the drivers of licensed hackney carriages to contract to carry persons for hire beyond the district. Provided also that if the hiring takes place within the district any offence against any such byelaw whether such offence shall have been committed within the district or not may be brought before and determined by any justice or justices of the peace having jurisdiction in the district :

As to public vehicles taken at railway station.

Provided always that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

116. An occasional licence for a public vehicle may be granted by the Council to be in force for such day or days or other period less than one year as may be specified in the licence.

Occasional licences may be granted.

117.—(1) The Council may grant to any person they think fit a licence to carry on the calling of luggage porter public messenger or commissionaire and may charge a fee of one shilling for any such licence.

Power to license persons following certain callings.

(2) The Council may make byelaws for regulating the conduct of any persons so licensed and the charges to be made by them.

(3) Any such licence may be granted for a year or for any less period according as the Council may think fit and may be suspended or revoked or endorsed by the Council for a breach of such byelaws or whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public.

(4) Every such licence whensoever issued shall expire on the thirtieth day of June next following the date of its issue and may contain conditions as to the badge which the holder of any such licence shall wear.

A.D. 1903.

(5) If any person while unlicensed represents himself to be licensed or wears any badge for the purpose of holding himself out as licensed to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

PART XIII.

FINANCIAL MATTERS.

Power to
Council to
borrow.

118. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities such sums as shall be requisite for the following purposes (that is to say) :—

(A) For paying the costs of this Act as hereinafter defined on the security of the district fund and general district rate the sum necessary for the purpose :

(B) For the purchase of lands for and for the construction and laying out of the cemeteries and for the construction of the road by this Act authorised the sum of eleven thousand pounds on the security of the district fund and general district rate :

(C) For the purposes of the electricity supply undertaking of the Council such sums as the Local Government Board may sanction on the security primarily of the revenue of that undertaking and if they think fit in addition on the security of the district fund and general district rate :

And with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or for any of the purposes of their waterworks undertaking :

And in calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned. The powers of the Council as to borrowing and re-borrowing shall not be restricted by any of the provisions of the Public Health Acts.

Provisions
as to mort-
gages.

119. The following sections of the Public Health Act 1875 (that is to say) :—

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages) ;

Section 239 (Receiver may be appointed in certain cases) ;

shall extend and apply to and in relation to all mortgages made under the powers of this Act.

120. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

A.D. 1903.
Periods
for payment
off of money
borrowed.

As to moneys borrowed for the purpose (B) mentioned in the section of this Act of which the marginal note is "Power to Council to borrow" within fifty years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (A) mentioned in the said section within five years from the date or dates of borrowing the same :

As to moneys borrowed with the sanction of the Local Government Board within such period as that Board may sanction.

121. The Council shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Mode of pay-
ment off of
money bor-
rowed.

122.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

Sinking
fund.

(A) By payment to the fund throughout the prescribed periods of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund ; or

(B) By payment to the fund throughout the prescribed periods of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

A.D. 1903.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed periods a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating

sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed.

A.D. 1903:
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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed periods the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

123. If the Council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed periods and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be affected by reason of such re-borrowing.

Power to
re-borrow

124. Any person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act nor be bound to see to the application nor be answerable for any loss or non-application of the money lent or of any part thereof.

Protection of
lender from
inquiry.

125. The Council shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan

Council not
to regard
trusts.

A.D. 1903. — stands in the register or books of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Return re-
specting
sinking fund
to Local
Government
Board.

126.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment

or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

127. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund or general district rate : Expenses of executing Act.

Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

128.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred on them or the giving of any consents under this Act and their inspectors shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) All costs incurred by the Local Government Board (including such reasonable sum not exceeding three guineas a day as that Board may determine for the service of any inspector) in relation to the duties imposed on that Board under this Act shall save as by this Act otherwise provided be paid by the Council.

129.—(1) The Nantyglo Council may independently of any other borrowing power borrow at interest the sum requisite for paying the costs charges and expenses preliminary to and of and incidental to the preparing applying for and promoting the Nantyglo and Blaina Water Bill as taxed by the taxing officer of the House of Lords or of the House of Commons including the sum of one hundred and seventy pounds costs agreed to be paid by the Nantyglo Council to the Duke of Beaufort in relation to the agreement made between the Nantyglo Council and the Duke of Beaufort dated the sixth day of March one thousand nine hundred and three. As to costs of a Bill promoted by Nantyglo Council.

A.D. 1903.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of interest thereon the Nantyglo Council may mortgage or charge the district fund and the general district rate of their district.

(3) The Nantyglo Council shall pay off all moneys borrowed by them under this section within five years from the date or dates of the borrowing of the same and the sections of this Act whereof the marginal notes are—

“ Mode of payment off of money borrowed ” ;

“ Sinking fund ” ; and

“ Return respecting sinking fund to Local Government Board ” ;

shall apply to the Nantyglo Council in relation to such moneys as if they were therein named instead of the Council and such period of five years shall be the prescribed period within the meaning of those sections as so applied.

Application
of money
borrowed.

130. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Audit of
accounts.

131. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

PART XIV.

MISCELLANEOUS.

General pro-
visions as to
byelaws.

132. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act.

Informations
by whom to
be laid.

133. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

134. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman or the clerk shall be *primâ facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1903.

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Evidence of
appointments
authority &c.

135. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Authentica-
tion and
service of
notices &c.

136. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal.

As to appeal.

137. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

A.D. 1903.

Damages and charges to be settled by justices.

138. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Penalties to be paid over to treasurer.

139. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and subject to the provisions of the Police Act 1890 shall be carried by him to the credit of the district fund or to such other fund as the Council direct.

Compensation &c. how to be determined.

140. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Saving for indictments &c.

141. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges &c. not disqualified.

142. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Powers of Act cumulative.

143. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown rights.

144. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

[3 EDW. 7.] *Ebbw Vale Improvement Act, 1903.* [Ch. ccxlv.]

145. The costs charges and expenses preliminary to and of A.D. 1903.
and incidental to preparing and obtaining this Act including the Expenses of
costs charges and expenses preliminary to and of and connected Act.
with the obtaining of the resolution of owners and ratepayers
aforesaid shall after taxation by the taxing officer of the House
of Lords or House of Commons be paid by the Council out of
moneys to be borrowed by the Council under this Act but may in
the first instance be paid by the Council out of any of their rates
or funds and moneys so paid shall be recouped by and charged to
the moneys to be borrowed under this Act.

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